23NWCV01861 23NWCV01861

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23NWCV01861 Hearing Date: June 30, 2026 Dept: SEL

REVISED TENTATIVE ORDER

Plaintiff Magda J. Lizardo's Motion to Enforce Settlement and Request to Enter Judgment is GRANTED.

Plaintiff to give notice.

Background

This is a breach of contract action. On June 15, 2023, Plaintiff Magda J. Lizardo ("Plaintiff") filed this action against Defendants GEJ Construction, Inc., Juan Gerardo Perez, Jose Antonion Gonzalez (collectively "Defendants"), American Contractors Indemnity Company ("ACIC"), and Does 1 through 100. The Complaint alleges Plaintiff owns a property located at 1642-1644 South Spaulding Ave., Los Angeles (the "Property"). (Compl., ¶ 1.) Plaintiff and Defendants allegedly entered into a written agreement (the "Contract") on June 22, 2022, regarding remodel work at the Property. (Compl., ¶ 19.) The Complaint alleges that Defendant's workers compensation expired during the course of the project; however, Defendant GEJ Construction, Inc. continued to utilize employees, in violation of the Contract. (Compl., ¶¶ 23, 39.) Plaintiff further alleges Defendants are responsible for defective construction. (Compl., ¶ 38.)

The Complaint alleges five causes of action: 1) Breach of Contract, 2) Negligence, 3) Fraud and Deceit, 4) Recovery on Contractor's License Bond, and 5) Recovery of Money Paid to Unlicensed Contractors.

On June 20, 2024, ACIC obtained an order depositing $15,000 in bond funds with the Court and was subsequently dismissed from the case ("Stipulation"). (See 6/20/2024 Stipulation and Order of Deposit; Campbell Decl., ¶ 2, Exh. A.)

On September 29, 2025, the parties reached a settlement (the "Agreement"), providing that Defendants would pay Plaintiff the total sum of $35,000.00. (Campbell Decl., ¶ 3, Exh. B.)

Plaintiff now moves to enforce the Agreement, pursuant to Code of Civil Procedure section 664.6.

On May 28, 2026, the instant Motion came on for hearing. The Court ordered the parties to meet and confer regarding payments made and the Stipulation for return of bond. (5/28/26 Minute Order.)

No opposition has been filed as of June 30, 2026.

Legal Standard

Code of Civil Procedure section 664.6 provides the following:

"(a) If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(b) For purposes of this section, a writing is signed by a party if it is signed by any of the following:

(1) The party.

(2) An attorney who represents the party.

(3) If an insurer is defending and
indemnifying a party to the action, an agent who is authorized in writing by the insurer to sign on the party's behalf.”

(Code Civ. Proc., § 664.6, subd. (a).)

Discussion

Plaintiff seeks a court order enforcing the settlement agreement between Plaintiff and Defendants, pursuant to Code of Civil Procedure section 664.6.

a.
Retention of Jurisdiction

On November 7, 2025, the Court dismissed the case without prejudice and retained jurisdiction to make orders to enforce the terms of the settlement, including judgment, pursuant to Code of Civil Procedure section 664.6. (See 11/7/25 Minute Order; 11/7/25 Nunc Pro Tunc Order; Campbell Decl., ¶ 5, Exh. D.)

Therefore, the Court has retained jurisdiction to enter judgment.

b.
Enforceable Agreement

Plaintiff argues that the Agreement is enforceable and that judgment should be entered by the Court. Plaintiff asserts that Defendants have not paid any of the settlement amount. Plaintiff argues that Defendants have refused to sign any stipulation releasing the bond funds and have failed to begin making any monthly payments.

The Agreement provides that Defendants will “stipulate with [Plaintiff] that the Court release the bond sum to Plaintiff LIZARDO, in the amount of $15,000.00 upon full execution of the agreement. Defendants agree to execute any further documentation, including a proposed Stipulation to effectuate the release of such funds.” (Campbell Decl., ¶ 3, Exh. B.) The

Agreement further states Defendants will begin making payments of $750 per month to Plaintiff for twenty months beginning October 1, 2025, and will continue making payments of $1,2500 per month for four additional months, following the completion of the twenty payments. (Ibid.)

The Agreement states "[u]pon notice to counsel of record for Defendants that a payment is late, if not then received within 5 calendar days thereafter, Defendants shall be deemed to be in default and Plaintiff may move for entry of judgment upon motion or ex parte application for the Settlement Amount minus any payments made. Defendants agree to execute a stipulation that the Court may retain jurisdiction to enforce the Settlement Agreement pursuant to Code of Civil Procedure section 664.6." (Ibid.)

The Court finds an enforceable agreement exists, and the terms are clear. Both parties have signed the Agreement. Plaintiff's counsel notified Defendant's counsel on December 3, 2025, of Defendant's failure to execute a stipulation or make payments. (Campbell Decl., ¶ 4, Exh. C.) Because Defendants have not made payment on the settlement amount after notification, Defendants are deemed in default under the terms of the Agreement.

Accordingly, the Court grants Plaintiff's Motion to Enforce Settlement.

c.
Attorneys' Fees

Plaintiff argues that the Agreement provides that Plaintiff may seek attorneys' fees and costs associated with enforcing the Agreement.

Plaintiff requests attorneys' fees in the amount of $3,000.00, consisting of 4 hours preparing the instant motion, an anticipated 1.5 hours reviewing opposition and drafting a reply, and 0.5 hours attending the hearing of this motion, at an hourly rate of $500.00, plus a $60.00 filing fee. (Campbell Decl., ¶ 6.)

The Agreement states that "in the event it shall become necessary for any PARTY to employ an attorney, in connection with a breach or alleged breach of any term of this AGREEMENT, the prevailing PARTY in any such dispute or action shall be entitled to such PARTY's reasonable costs and fees incurred, including attorney's fees, in connection with enforcement of the AGREEMENT." (Campbell Decl., ¶ 3, Exh. B.) The Court thus finds Plaintiff is entitled to attorneys' fees.

The Court finds the requested amount excessive, considering the motion is straightforward, and no opposition or reply has been filed. The Court thus reduces the total amount to $1,310.00, consisting of 2.5 hours at an hourly rate of $500.00, and the $60.00 filing fee.

d.

Pre-judgment Interest

Plaintiff requests that the Court award 10 percent interest per annum at a daily rate of $9.58, from the date payment was first due, October 1, 2025, to the date of the hearing of this motion, March 26, 2026. Based on the daily rate and the number of elapsed days, Plaintiff asserts that they are entitled to pre-judgment interest of $1,695.66.

Plaintiff requests pre-judgment interest in the amount of $1,695.66, pursuant to Civil Code section 3289. (Civ. Code § 3298, subd. (b) ["If a contract entered into after January 1, 1986, does not stipulate a legal rate of interest, the obligation shall bear interest at a rate of 10 percent per annum after a breach."].)

Plaintiff based this amount on the principal amount owed being $35,000, and a 10% per year statutory rate, making a daily interest rate of $9.58. (Campbell Decl., ¶ 7.) Plaintiff asserts that the first payment was due on October 1, 2025, and 177 days will have elapsed between that date and the initial date of this hearing on March 26, 2026. The Court notes the hearing date was continued to May 28, 2026, by the Court's own motion on February 11, 2026. (2/11/26 Minute Order.) It was then continued to today's date. (5/28/26 Minute Order.)

The Court finds pre-judgment interest in the amount of $2,605.76, calculated by multiplying the daily rate of $9.58 by 272 days. The Court considers the time elapsed between October 1, 2025, and June 30, 2026, the date of this hearing.

Conclusion

Based on the foregoing, the Court awards a judgment of $39,099.62 to Plaintiff, reflecting $35,000.00 in principle, plus attorney fees and costs of $1,810.00, and prejudgment interest of $2,605.76.